

23CHCV02305 23CHCV02305

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Case Number: 23CHCV02305 Hearing Date: September 1, 2026 Dept: F47

Dept. F47

Date: 9/1/26

Case #23CHCV02305

MOTION TO STRIKE

OR, IN THE
ALTERNATIVE,

TAX COSTS

Motion filed on 4/28/26.

MOVING PARTY: Defendant Marco Antonio Duval

RESPONDING PARTY: Plaintiff Emma Morales

NOTICE: ok

RELIEF REQUESTED: An order striking or, in the alternative, taxing certain items contained in Plaintiff's Memorandum of Costs. Specifically, Defendant seeks an order striking or taxing the following costs: (1) Item 4 – Deposition Costs (\$6,198.65); (2) Item 8 – Expert Witness Fees (\$14,537.50); (3) Item 11 – Court Reporter Fees (\$7,236.00); (4) Item 13 – Models/ Enlargements/Photocopies (\$831.94); (5) Item 14 – Electronic Filing/Service Fees (\$290.71); and (6) Item

15 – Prejudgment Interest (\$5,738.84).

RULING: The motion is granted, in part, and denied, in part, as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This personal injury action arose out of a motor vehicle accident that occurred on 2/27/23. On 8/2/23, Plaintiff Emma Morales (Plaintiff) filed this action against Defendant Marco Antonio Duval (Defendant) alleging a single cause of action for negligence.

On 3/4/24, Plaintiff made a CCP 998 Offer to Compromise in the amount of \$15,000.00. (Wilmers Decl. ¶11).

After a jury trial, on 4/10/26, the Court entered judgment in favor of Plaintiff in the total amount of \$27,310.00 (\$7,310 for past economic damages (medical expenses) + \$20,000 for past non-economic damages). On 4/15/26, Defendant filed a Notice of Intent to Move for New Trial and on 4/16/26, the Court set the matter for hearing on 6/9/26. On 4/22/26, Defendant filed and served a motion for new trial which was denied on 6/9/26. (See 6/9/26 Minute Order).

On 4/27/26, Plaintiff filed and served a Memorandum of Costs and a Brief Re Prejudgment Interest and Costs. On 4/28/26, Defendant filed and served the instant motion seeking an order striking or, in the alternative, taxing certain items contained in Plaintiff's Memorandum of Costs. Specifically, Defendant seeks an order striking or taxing the following costs: (1) Item 4 – Deposition Costs (\$6,198.65); (2) Item 8 – Expert Witness Fees (\$14,537.50); (3) Item 11 – Court Reporter Fees (\$7,236.00); (4) Item 13 – Models/ Enlargements/Photocopies (\$831.94); (5) Item 14 – Electronic Filing/Service Fees (\$290.71); and (6) Item 15 – Prejudgment Interest (\$5,738.84). Plaintiff has opposed the motion and Defendant has filed a reply to the opposition.

ANALYSIS

As the prevailing party in this action, Plaintiff is

entitled to recover certain costs as a matter of right. See CCP 1032(a)(4), (b); CCP 1033.5(a); Goodman (2010) 47 C4th 1327, 1333. If items on their face appear to be proper charges, a verified memorandum of costs is prima facie evidence of the propriety of such costs and the party seeking to tax the costs has the burden to show that they are not reasonable or necessary. See Jones (1998) 63 CA4th 1258, 1266; Ladas (1993) 19 CA4th 761, 774; Nelson (1999) 72 CA4th 111, 131. If an item is properly objected to, the burden shifts to the claiming party to show that it is a proper charge. Melnyk (1976) 64 CA3d 618, 624.

Item 4: Deposition Costs (\$6,198.65): Recoverable costs include costs incurred in the "(A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed. (B) Fees of a certified or registered interpreter for the deposition of a party or witness who does not proficiently speak or understand the English language.

(C) Travel expenses to attend depositions." CCP 1033.5(a)(3).

Defendant has failed to meet his burden of showing that the \$3,642.90 costs associated with the deposition of Rocco Calderone, M.D. and the \$1,191.50 costs associated with the deposition of Daniel F. Trudell, both of whom were Defendant's retained experts, are not reasonable or necessary. Plaintiff's memorandum of costs includes invoices for the two deposition charges challenged by Defendant which show that the costs were incurred for an original transcript and reporter appearance for Trudell and an original transcript, reporter appearance and video for Calderone.

As such, Defendant's request to strike or tax Item 4 is denied.

Item 8: Expert Witness Fees (\$14,537.50): CCP 998(d) provides:

"If an offer made by a plaintiff is not accepted and the defendant fails to obtain a more favorable judgment or award in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the defendant to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during

trial or arbitration, of the case by the plaintiff, in addition to plaintiff's costs."

Here, on 3/4/24, Plaintiff made a CCP 998 Offer to

Compromise in the amount of \$15,000.00 which Defendant did not accept. (Wilmers Decl. ¶11). Defendant has failed to support his claim

that the offer "was not a reasonable prediction of value." (See Motion, p.5:13-14). Where an offeror obtains a judgment more favorable than her offer, the judgment is prima facie evidence that the offer was reasonable and the offeree has the

burden of proving otherwise. Elrod

(1987) 195 CA3d 692, 700; Jones, supra at 1264; Licudine

(2019) 30 CA5th 918, 924. Here, the

judgment in favor of Plaintiff was almost double Plaintiff's offer to compromise.

Additionally, Defendant provides no evidence to support the

argument in reply that the offer was made too soon/before any meaningful

discovery and/or that such claims were communicated to Plaintiff. (See Reply, p.3:17-26). On the other hand, the declaration submitted

in support of the opposition specifically states:

"Plaintiff's section 998 offer of

\$15,000.00 was served on March 4, 2024, twenty-five months before trial. At

that time Defendant had been served with Plaintiff's medical records and

billing, written discovery responses, and the traffic collision report. Defendant

never advised me that he lacked information sufficient to evaluate the offer,

never requested additional information in order to evaluate it, and never

responded to the offer at all."

(Wilmers Decl. ¶11).

Plaintiff has provided sufficient evidence to support the

fees charged by her experts and Defendant has failed to meet his burden of

establish that the fees are unreasonable and/or were not necessarily

incurred. Plaintiff is also entitled to

recover the fees paid to take Defendant's experts' depositions. See Chaaban (2012) 203 CA4th

49, 58; CCP 2034.430(b).

Based on the foregoing, Defendant's request to strike or

tax Item 8 is denied.

Item 11: Court Reporter Fees (\$7,236.00): A

prevailing party is entitled to recover “[c]ourt reporter fees as established by statute. CCP 1033.5(a)(11). Where an official reporter is not available for a civil trial, “a party may arrange for, at the party’s expense, the presence of a certified shorthand reporter to serve as an official pro tempore reporter,” and “[t]he fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law.” Government Code 68086(d); CRC 2.956(c).

Plaintiff concedes that the amount should be corrected to

\$7,232.00. However, costs for rough

drafts which Defendant contends Plaintiff improperly seeks to recover were not included in the costs set forth in the memorandum of costs. The Court also finds that the parking charges were properly included as part of the court reporter’s fees and charges allowable under Government Code 68086(d).

See also CCP 1033.5(c)(4).

Based on the foregoing, Item 11 is taxed in the amount of

\$4.00 making \$7,232.00 the recoverable amount under this item.

Item 13: Models, Enlargements & Photocopies of

Exhibits (\$831.94): A prevailing party is entitled to recover costs for

“[m]odels, the enlargements of

exhibits and photocopies of exhibits, and the

electronic presentation of exhibits, including costs of rental equipment and

electronic formatting, may be allowed if they were reasonably

helpful to aid the trier of fact.” CCP

1033.5(a)(13). However, other

photocopying charges are expressly not recoverable as costs. See CCP 1033.5(b)(3).

Under this item, Plaintiff seeks to recover for “Exhibit

binders; Motion in Limine binders.” (See

Memorandum of Costs, p.5 of 6, No.13). In

the memorandum of costs and the opposition to the instant motion, Plaintiff

fails to separate the costs associated with the exhibit binders, which might be

recoverable, and the costs associated with the motion in limine binders, which

are not recoverable. Plaintiff has also

failed to establish that the exhibit binders were reasonably helpful to aid the

trier of fact.

Based on the foregoing, Item 13 is taxed in its entirety and reduced to \$0.

Item 14: Electronic Filing and Service Fees (\$290.71):

As the prevailing party, Plaintiff is entitled to recover “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” CCP 1033.5(a)(14). Los Angeles Superior Court requires electronic filing. (See Los Angeles Superior Court, First Amended General Order re Mandatory Electronic Filing for Civil (May 3, 2019)); CRC 2.253(b).

The Court finds that \$290.17 in electronic filing and service fees over the course of the litigation of this case for almost 3 years is reasonable.

Therefore, Defendant's request to strike or tax Item 14 is denied.

Item 15: Other – Prejudgment Interest (\$5,738.84):

Where a plaintiff in a personal injury action makes a CCP 998 offer that the defendant does not accept and the plaintiff obtains a more favorable judgment, “the judgment shall bear interest at the legal rate of 10 percent per annum calculated from the date of the plaintiff's first offer . . . which is exceeded by the judgment, and interest shall accrue until the satisfaction of judgment.” Civil Code 3291. The Court has no discretion to withhold interest if the foregoing requirements are met which they are in this case. Lakin (1993) 6 C4th 644, 658-662.

With regard to this item, Defendant argues that prejudgment interest is not a “routine cost item” which is dependent upon a valid CCP 998 offer. Defendant, again, argues that Plaintiff's CCP 998 offer was not valid. For the reasons, set forth above, this argument fails. Defendant also contends that he disputes the “calculation” of the interest, but fails to explain why or offer another calculation. (See Motion, p.6:23). Defendant also provides no authority for his claim that prejudgment interest should be “separately determined.” (See Motion, p.6:24).

The Court finds that Plaintiff has established her entitlement to prejudgment interest pursuant to Civil Code 3291; has properly calculated the amount and may include such in the memorandum of costs pursuant

to CCP 1033.5(c)(4) ("Items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion."). Since Defendant had an opportunity to challenge the claim for prejudgment interest, the Court finds that it would be waste of time and money for the parties as well as judicial resources to require Plaintiff to file a separate motion to recover the prejudgment interest to which she is entitled.

Defendant's request to tax Item 15 is denied.

CONCLUSION

The motion is granted, in part, and denied, in part.

Item 11 is taxed in the amount of \$4.00 leaving \$2,232.00 as the recoverable amount for this item.

Item 13 is taxed in its entirety leaving \$0 as the recoverable amount for this item.

Defendant's requests to strike/tax Items 4, 8, 14 and 15 are denied.